

Easement

Version 3.3 released on 6/29/23

PWO121212



CITY COUNCIL USE ONLY		Tracking #:		CITY CLERK USE ONLY	
Date Received:		Committee:		☐ Scanned	
Committee Date:		Hearing Date:		Date: 04.02.2025	
1st Agenda Date:		2nd Agenda Date:		☐ Posted	
				Item #: 2504.00832	

All department items requiring Council approval must be submitted through the Mayor's Office.

Primary Details		
Board Approval	Other Board Name	
City Council Approval	☒ Yes ☐ No	
Department	Contact Name	
Public Works	Michelle L. Lester	
Easement Type	Email	
Sanitary Sewer	mlester@cityoftulsa.org	
	Phone	
	918-596-7262	
	Owner-Grantor	
	Phyllis J. Raines, Trustee, and Michael A. Raines	
Bid/Project Number	Project Title	Council District
ES 2022-15	Spunky Creek East Branch C1	6
Section	Township	Range
7	19	15
Lot	Block	Address
		Wagoner County
Parcel Number	Additional Information/Tracking Number	
2A		

Budget	
Contract Types	Funding Source(s)
☐ No Payments Involved	2131S00004.SewerLines.Sewer.7500N.75003308.541101:
☐ Revenue Contracts	\$30.00
☒ Expense Contracts	TOTAL:
	\$30.00

Approvals	
Department:	Date:
Legal:	Date: 03.21.25
Board:	Date: 03/21/2025
Mayor:	Date:
Other:	Date: APR 02 2025

Policy Statement	
Background Information	
Project ES 2022-15 - Spunky Creek East Branch C1, Parcel 2A	
The City of Tulsa is planning a sanitary sewer project in the vicinity of the East 11th Street and the Creek Turnpike in Wagoner County. The attached Sanitary Sewer Easement is required for the project. This easement is being donated by Phyllis J. Raines, Trustee of the Phyllis J. Raines Revocable Trust dated 3/10/93, and Michael A. Raines.	
Payment request is attached to the Wagoner County Clerk for the filing fee (\$30.00).	
PDZ:	MSL:
PDZ	MSL
Summation of the Requested Action	
Mayoral approval and City Council acceptance.	
Other Pertinent Details	

Processing Information for City Clerk's Office	
Post Execution Processing	
☐ Mail vendor copy (add'l signature copies attached)	
☒ Must be filed with other governmental entity	
☐ Add'l governmental entity approval(s) required	
Additional Routing, Processing or Contact Details	
Courtney Jones, 6-9549	

2025-RP2-1155

SANITARY SEWER EASEMENT

KNOW ALL MEN BY THESE PRESENTS:

That the undersigned, **Phyllis J Raines, Trustee of the Phyllis J. Raines Revocable Trust dated 3/10/93 and Michael A. Raines, a single person**, (Grantor), the owner of the legal and equitable title to the following real estate situated in Wagoner County, State of Oklahoma, for and in consideration of the sum of One Dollar (\$1.00) from the City of Tulsa, Oklahoma, a municipal corporation (City), and other good and valuable considerations, receipt of which is hereby acknowledged, does hereby grant and convey unto the said City of Tulsa, Oklahoma, a permanent easement through, over, under and across the following described property, situated in said County, to-wit:

See Exhibit "A"

for the purpose of permitting the City to construct a **sanitary sewer** thereon, through, over, under and across said property, together with all necessary and convenient appurtenances thereto; and to use and maintain the same, and of affording the City, its officers, agents, employees, and/or all persons under contract with it, the right to enter upon said premises and strip of land for the purpose of surveying, excavating for, constructing, operating, repairing, and maintaining of such construction.

The City is hereby given and granted the exclusive possession of said above premises for the purposes aforesaid and Grantor, for itself and administrators, successors and assigns, covenants and agrees that no building, structure, fence, wall or other above ground obstruction will be placed, erected, installed or permitted upon the above described land; and further covenants and agrees that in the event the terms of this paragraph are violated by the Grantor, or any person in privity with it, such violation will be promptly corrected and eliminated immediately upon receipt of notice from City, or City shall have the right to remove or otherwise eliminate such violation, and Grantor, its administrators, successors and assigns, shall promptly pay the actual cost thereof.

TO HAVE AND TO HOLD Such easement and right-of-way unto the City, its successors or assigns, forever.

Dated this 28 day of February, 2025.

Phyllis J. Raines, Trustee of the Phyllis J. Raines
Revocable Trust dated 3/10/93,

By: Phyllis J. Raines
Name: Phyllis J. Raines
Title: Trustee

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

This instrument was acknowledged before me on this 28 day of February, 2025,
by _____, Phyllis J Raines, Trustee of the Phyllis J. Raines
Revocable Trust dated 3/10/93.

Given under my hand and seal of office the day and year last above written.

Sherrie Cypert
Notary Public

My commission expires:

11-23-2028

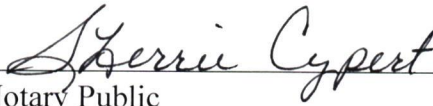


By: 
Name: Michael A. Raines

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

This instrument was acknowledged before me on this 28 day of February, 2025,
by **Michael A. Raines**, a single person.

Given under my hand and seal of office the day and year last above written.

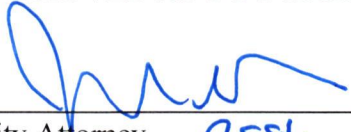

Notary Public

My commission expires:

11-23-2028



APPROVED AS TO FORM:



City Attorney - *asst.*

APPROVED AS TO SUBSTANCE:



Director

ACCEPTED BY CITY COUNCIL:

Date: _____

BY: _____

Name: Phil Lakin, Jr.

Title: Chairman

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the _____ day of _____, 2025, personally appeared **Phil Lakin, Jr.**, to me known to be the identical person who accepted the within and foregoing instrument as **Chairman** of the City Council of the City of Tulsa, Oklahoma, and acknowledged to me that he accepted the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City Council of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

APPROVED BY MAYOR:

CITY OF TULSA, OKLAHOMA,
a municipal corporation

Date: _____

BY: _____

Name: Monroe Nichols IV

Title: Mayor

ATTEST:

City Clerk

STATE OF OKLAHOMA)
) ss.
COUNTY OF TULSA)

Before me, a Notary Public in and for said County and State, on the ____ day of _____, 2025, personally appeared **Monroe Nichols IV**, to me known to be the identical person who approved the within and foregoing instrument as **Mayor** of the City of Tulsa, Oklahoma, and acknowledged to me that he approved the within and foregoing instrument as his free and voluntary act and deed and as the free and voluntary act and deed of the City of Tulsa, Oklahoma, for the uses and purposes therein set forth.

Notary Public

My commission expires:

PARCEL NO. 2A
COUNTY WAGONER

LEGAL DESCRIPTION

PHYLLIS J. RAINES,
TRUSTEE OF THE PHYLLIS J. REVOCABLE TRUST
PERMANENT EASEMENT

A TRACT LAND LOCATED IN THE NORTHEAST QUARTER (NE/4), SECTION SEVEN (7), TOWNSHIP NINETEEN (19) NORTH, RANGE 15 EAST OF THE INDIAN BASE AND MERIDIAN, WAGONER COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

COMMENCING AT THE NORTHEAST CORNER OF SAID NE/4; THENCE SOUTH 88°25'55" WEST AND ALONG THE NORTH LINE OF SAID NE/4, FOR A DISTANCE OF 202.61 FEET TO THE **POINT OF BEGINNING**; THENCE SOUTH 08°12'55" EAST, FOR A DISTANCE OF 35.87 FEET; THENCE SOUTH 18°11'14" WEST, FOR A DISTANCE OF 412.20 FEET; THENCE SOUTH 28°10'10" EAST, FOR A DISTANCE OF 250.95 FEET; THENCE SOUTH 59°07'27" EAST, FOR A DISTANCE OF 114.32 FEET; THENCE SOUTH 12°45'30" EAST, FOR A DISTANCE OF 77.40 FEET; THENCE NORTH 64°40'51" WEST, FOR A DISTANCE OF 63.52 FEET; THENCE NORTH 12°45'30" WEST, FOR A DISTANCE OF 16.82 FEET; THENCE NORTH 59°07'27" WEST, FOR A DISTANCE OF 106.75 FEET; THENCE NORTH 28°10'10" WEST, FOR A DISTANCE OF 286.20 FEET; THENCE NORTH 18°11'14" EAST, FOR A DISTANCE OF 421.88 FEET; THENCE NORTH 08°12'55" WEST, FOR A DISTANCE OF 29.97 FEET TO A POINT ON THE NORTH LINE OF SAID NE/4; THENCE NORTH 88°25'55" EAST AND ALONG SAID NORTH LINE, FOR A DISTANCE OF 50.34 FEET TO THE **POINT OF BEGINNING**. CONTAINING 43,808.78 SQUARE FEET OR 1.01 ACRES, MORE OR LESS.

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

REAL PROPERTY CERTIFICATION:

I, NATHANIEL J. REED, CERTIFY THAT THE ATTACHED LEGAL DESCRIPTION CLOSES IN ACCORD WITH EXISTING RECORDS, IS A TRUE REPRESENTATION OF THE REAL PROPERTY AS DESCRIBED, AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.

NATHANIEL J. REED
P.L.S. 7744
6-12-2024
6-17-2024
DATE OF SIGNATURE
DATE OF LAST SITE VISIT OF OKLAHOMA



NATIVE PLAINS
Surveying & Mapping, LLC
A Native American Owned Business
5807 South Garnett Road, Suite K, Tulsa, Oklahoma, 74146
Telephone: 918 234 7596, Fax: 918 893 5552
Expires June 30, 2025
Certificate of Authorization No. 4916

EAST 11th STREET SOUTH

PLAT OF SURVEY

PARCEL NO. 2ACOUNTY WAGONER

PHYLLIS J. RAINES,
TRUSTEE OF THE PHYLLIS J.
REVOCABLE TRUST
PERMANENT EASEMENT

LEGAL DESCRIPTION: A TRACT OF LAND LOCATED
IN THE NE/4 OF SECTION 7, TOWNSHIP 19 NORTH,
RANGE 15 EAST, WAGONER COUNTY, STATE OF
OKLAHOMA

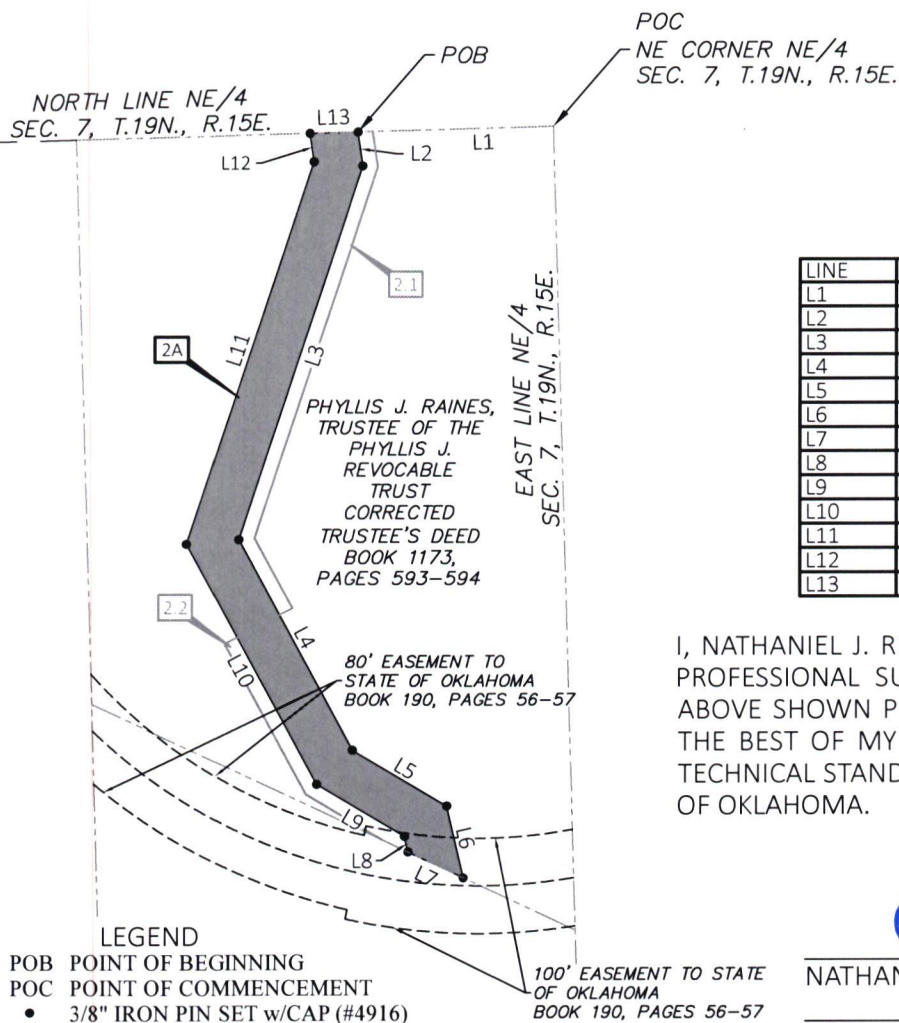
SEC 7 T 19 N R 15 E

SOUTH 193rd EAST AVENUE

SOUTH 209th EAST AVENUE

EAST 21st STREET SOUTH

TEMPORARY EASEMENT	0.00	SF	0.00	ACRES
PERMANENT EASEMENT	43,808.78	SF	1.01	ACRES



LINE	BEARING	DISTANCE
L1	S 88°25'55" W	202.61'
L2	S 08°12'55" E	35.87'
L3	S 18°11'14" W	412.20'
L4	S 28°10'10" E	250.95'
L5	S 59°07'27" E	114.32'
L6	S 12°45'30" E	77.40'
L7	N 64°40'51" W	63.52'
L8	N 12°45'30" W	16.82'
L9	N 59°07'27" W	106.75'
L10	N 28°10'10" W	286.20'
L11	N 18°11'14" E	421.88'
L12	N 08°12'55" W	29.97'
L13	N 88°25'55" E	50.34'

I, NATHANIEL J. REED OF THE STATE OF OKLAHOMA, AND A PROFESSIONAL SURVEYOR, DO HEREBY CERTIFY THAT THE ABOVE SHOWN PLAT OF SURVEY IS TRUE AND CORRECT TO THE BEST OF MY KNOWLEDGE AND MEETS THE MINIMUM TECHNICAL STANDARDS FOR LAND SURVEYING OF THE STATE OF OKLAHOMA.



NATHANIEL J. REED

DATE OF SIGNATURE

DATE OF LAST SITE VISIT

BASIS OF BEARINGS: BASED ON OKLAHOMA STATE PLANE
COORDINATE SYSTEM, NORTH ZONE (3501) NAD 83 (1993).

EXHIBIT "A"

MUNIS for ES 2022-15
As of 3/12/2025

Project string

▲	Project *	2131S00004	Spunky Creek MS Interceptor S - C1
▲	Phase *	SewerLines	Sewer lines
▲	Task *	Sewer	Sewer projects
	Sub-Task *	7500N	TMUA Sewer Capital Projects

Name * Spunky Creek MS Interceptor S

Short Name * Spunky Crk

Status Active ▼

Projected date range 03/24/2021 to 03/24/2025

Actual date range to

Project String Balances

GL Accounts



Project Year 2025

Original Budget	.00	{
Transfers - In	170,862.86	{
Transfers - Out	-862.81	{
Revised Budget	982,373.88	
Actual (Memo)	42,086.24	{
Encumbrances	104,598.73	{
SOY Encumbrances	.00	
Requisitions	.00	{
Inception to SOY	493,030.92	
Available	342,657.99	
Percent Used	65.12	

Default GL account

Fund SubFund

Org Object

75003308

541101

MUNIS

INVOICE COVER SHEET

Vendor Name and Address

Wagoner County Clerk

**Department #: 32- Public
Works****Date: 3/12/2025****Special Handling**

☐ Wire Transfer
☒ Will Pick up
Email: PWAdmin@cityoftulsa.org

ACCOUNTS PAYABLE USE

Allocation code: _____

MUNIS VENDOR NUMBER

2154-2

MUNIS CONTRACT #**PROJECT STRING** (if applicable)**ORG****OBJECT****AMOUNT**

2131S00004.SewerLines.Sewer.7500N

75003308

541101

\$30.00

\$0.00

\$0.00

INVOICE NUMBER/DESCRIPTION

Filing Fees

Project ES 2022-15

Parcel 2A

REMARKS**Purchase
Authority**☐

Special Approval

☐

Exception

☐

Contract

Invoice☐

Original Attached

☐

Prepay (Attach form)

☐

Refund

Affidavit☒Affidavit attached (form TUL-373)
For invoices over \$25,000☐

Not applicable

Prepared by: Bruce Hutton*Munis Workflow approval***Date:** 3/12/2025